

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**RESPONDENT, THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY'S
SUR-REPLY IN FURTHER OPPOSITION TO COMPLAINANT, PORT ELIZABETH &
TERMINAL WAREHOUSES CORP.'S MOTION TO COMPEL DISCOVERY**

Of Counsel and on the Brief:
Juan M. Barragan

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Preliminary Statement

The Port Authority respectfully submits this sur-reply in further opposition to PETW's motion to compel discovery. As a preliminary matter, 46 CFR § 502.71(c) precludes PETW from filing a reply to the Port Authority's opposition. Based on this alone, Your Honor should not consider PETW's improperly filed reply as it is in contravention to the FMC's Rules of Practice and Procedure.

Moreover, in its reply brief, PETW misrepresents the Port Authority's answers to PETW's first set of interrogatories by conveniently leaving out the Port Authority's additional responses to PETW's claimed deficiencies. This is second time that PETW has misrepresented to Your Honor critical facts relating to this motion – in its supplemental brief, PETW misrepresented that it filed the motion to compel before receiving the Port Authority's responses to its claimed deficiencies. PETW's misrepresentations, its filing of a supplement to its motion to compel, and this reply brief are all indicative of PETW's blatant disregard to the FMC's Rules of Practice and Procedure.

Argument

Point I

46 CFR § 502.71(c) precludes PETW from filing a reply to the Port Authority's opposition.

46 CFR § 502.71(c) FMC's Rules of Practice and Procedure states that "[t]he moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances."

Here, PETW has not argued, nor made a showing, that extraordinary circumstances exist to allow it to file a reply. In addition, neither the Commission or Your Honor has requested that PETW file a reply. As such, the Port Authority respectfully requests that Your Honor not consider PETW's improper filing and deny its motion to compel discovery.

Point II

PETW misrepresents the Port Authority's answers to PETW's first set of interrogatories.

In its reply brief, PETW misrepresents the Port Authority's answers to PETW's first set of interrogatories by conveniently leaving out the additional answers the Port Authority submitted in response to PETW's claimed deficiencies to its first set of interrogatories.

For instance, in interrogatory #11, PETW asked: "Did the PANYNJ agree to provide 'Added Parcel' or 'Added Parcels' as described in L-PN-264 to PNCT? If so, set forth the reasons why PANYNJ agreed to provide 'Added Parcel' or 'Added Parcels' as described in L-PN-264 to PNCT and identify all facts, documents and files?" *See* Certification of Juan M. Barragan ("Barragan Cert.") dated November 27, 2017 at Ex. A, p. 8. Contrary to PETW's assertion, the Port Authority's answer to PETW's claimed deficiency to interrogatory #11 was: "Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the answer is yes. Pursuant to 46 CFR § 502.145(d)(1), the reasons for same can be found in the documents bates no. PA001201-PA003098 and PA003099-PA003639." *See* Barragan Cert. at Ex. A, p. 8-9.

In similar fashion and contrary to PETW's assertions, the Port Authority answered the rest of the interrogatories completely. As another example, interrogatory #15 asked: "If PANYNJ did not provide any tenant or other occupant of 'Added Parcel' or 'Added Parcels' as described in leases between the PANYNJ and PNCT including L-PN-264 an opportunity to negotiate to remain in possession of the relevant 'Added Parcel' set forth why. *See* Barragan Cert. at Ex. A, p. 10.

In response the Port Authority answered:

"Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, tenants were not allowed to negotiate to remain in possession of the added parcels to allow PNCT and the Port Authority to develop and re-develop that area, which would increase

the throughput volume. Pursuant to 46 CFR § 502.145(d)(1), documents indicating the phases of the expansion and additional benefits of the development and redevelopment of the area are contained in the documents bates No. PA001201-PA003098 and PA003099-PA003639 and in the PNCT lease agreement, which is bates numbered PA000001-PA000276. Same discusses the phases and plans to develop and construct improvements, which included the development of a marine terminal container facility in the existing terminal facility and in the added parcels.”

See Barragan Cert. at Ex. A, p. 10-11.

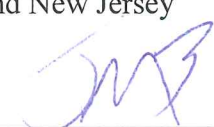
PETW’s claim that the Port Authority refused to provide PETW with responsive answers to its interrogatories relating to the regulations and/or practices of marine terminal operators is likewise without merit. In response to these interrogatories, the Port Authority, pursuant to 46 CFR § 502.145(d)(1) provided PETW with a copy of the Rules and Regulations Applying at Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals. *See Barragan Cert. at Ex. A, p. 27.*

In sum, PETW’s attempt to mislead Your Honor is not only disingenuous, but sanctionable. As such, the Port Authority respectfully requests that Your Honor deny PETW’s motion to compel and consider sanctioning PETW for its blatant misrepresentations.

Conclusion

For the foregoing reasons and those set forth in the Port Authority’s November 21, 2017 opposition to PETW’s motion to compel, it is respectfully requested that PETW’s motion be denied in its entirety.

PORT AUTHORITY LAW DEPARTMENT
Attorneys for The Port Authority of New
York and New Jersey

By: 

Juan M. Barragan

Dated: November 27, 2017

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AFFIDAVIT OF SERVICE

Tyler L. Hinton, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

That on the 27th day of November 2017, I served the annexed **THE PORT AUTHORITY'S SUR-REPLY IN FURTHER OPPOSITION TO PETW'S MOTION TO COMPEL DISCOVERY** upon:

Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

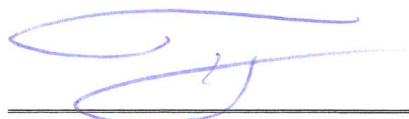
LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West, Suite 200
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by FedEx to be shipped via FedEx Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

Sworn to before me this
27th day of November 2017.



Notary Public



Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
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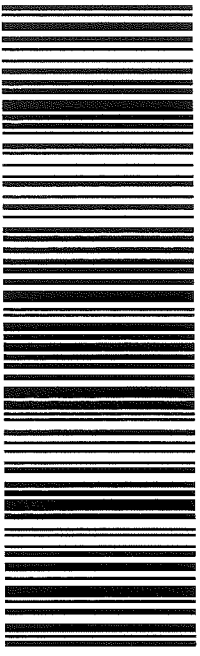
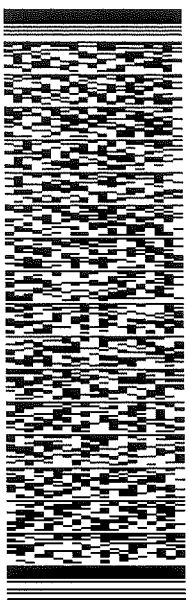

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